

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 15, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	22CV408816	Ross Brooks vs V& Victoria, LLC et al	Motion to Compel Scroll down to Line 1 for Tentative Ruling.
LINE 2	22CV409329	Wells Fargo Bank, vs Dung Tran	Motion to Vacate and Enter Judgment Scroll down to Line 2 for Tentative Ruling.
LINE 3	23CV416606	Zhao Zheng vs Ming Lin	Motion for Terminating and Monetary Sanctions Scroll down to Line 3 for Tentative Ruling.
LINE 4	23CV427505	Steve McHarris vs City of Milpitas	Motion to Tax Cost CONTINUED to January 26, 2027 at 9:00 a.m. in Department 1. Moving party requested a continuance as the matter is under appeal.
LINES 5-6	23CV427764	Julian Orozco et al vs Salvador Chavarin et al	Motion to Compel Deposition of Julian Orozco; Sanctions (Line # 5); Motion to Compel Deposition of Teresa Duarte; Sanctions (Line # 6) OFF CALENDAR. On August 27, 2026, the entire action was dismissed based on Plaintiffs' failure to appear. The motion filed on December 31, 2025 is rendered MOOT.
LINES 7-8	24CV442503	Jose Javier Luna-Robles vs Elizabeth Alejo	Demurrer (Line # 7) & Motion to Strike (Line # 8) Scroll down to Lines 7-8 for Tentative Ruling.
LINE 9	25CV479927	Chung Bao cs Shih-Jen Lin et al	Motion to Quash Scroll down to Line 9 for Tentative Ruling.
LINE 10	26CV484388	Rosette Simon et al vs EAH Housing Inc. et al	Demurrer Scroll down to Line 10 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	23CV416339	Cathay Bank vs RPRO152N3, et al	Hearing: Order of Examination OFF CALENDAR per request of moving party on September 9, 2026.
<u>LINE 2</u>	25CV461304	Bueno People Ltd. Vs Chargelink LLC	Hearing: Order of Examination Parties to appear.

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9:00 A.M.

Calendar Line # 1
Case Name Ross Brooks vs V& Victoria, LLC et al
Case No. 22CV408816
Motion to Compel Further Responses to Discovery; Motion for Admissions Deem Admitted; and Sanctions The moving party/Cross-Defendants Jojan Thomas Anthony and Jameskutty K. Matthew filed the motions to compel a <i>total of 235 separate further discovery responses</i> as follows: request for further responses to requests numbers 1- 178; Form interrogatories 3.6, 12,1, 12.4-12.7, 15.1, 16.1, and 17.1; and request for production numbers 2-7; and cross defendant Anthonys further request for responses to 1 through 42. On June 11, 2026, the moving party requested a continuance on the motions and matter as parties agreed to a discovery facilitation meeting on June 26, 2026 with Ronald Digesti. The Court granted the continuance to this day. Cross-Defendants Jojan Thomas Anthony, Jayasankar Puliampatta, Jameskutty K. Matthew, Shaju Cherian, Matthew Sebastian, and Biju Joseph (“Anothony et al.”) and cross-defendant V& Victoria LLC were ordered to provide a joint statement no later than September 1, 2026, providing a cause status and discovery update. No joint statement was timely filed. The parties are ordered to appear. The Court will consider taking the motions OFF calendar.

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Calendar Line # 2
Case Name Wells Fargo Bank, N.A. vs Dung Tran
Case No. 22CV409329
Motion to Vacate and Enter Judgment
<u>I. BACKGROUND</u> Before the court is a collections case stemming from Plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”)’s Complaint filed on December 29, 2022, alleging four causes of actions, including breach of contract against Defendant Dung Tran (“Tran”). (Complaint). Plaintiff states that the underlying damages amounts to \$4,369.13. (<i>Id.</i>). On May 5, 2023, the parties filed a notice of settlement. Pursuant to the stipulation, Defendant agreed to a total of \$4,360.16 by way of monthly payments of \$273.00 or more beginning on March 26, 2023 through and including May 26, 2024, followed by a final payment of \$265.13 on or before June 26, 2024. (Motion, p. 3). On January 16, 2026, Plaintiff Wells Fargo filed this motion to vacate notice of settlement and enter judgment pursuant stipulation under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Tran on January 14, 2026. Plaintiff asserts that Defendant rendered \$4,087.13 and failed to remit any further payment. (<i>Id.</i>). On September 16, 2024, Plaintiff sent a letter informing Defendant about the outstanding payment and seeking default. (<i>Id.</i>). The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on September 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the moving papers, including the notice of motion and memorandum of points and authorities (“MPA”) (totaling 4 pages); Declaration of Edgar B. Lopez and attached Exhibits 1-2 (totaling 13 pages); notice of non-compliance (totaling 1 page); proof of service and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6). Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (<i>Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.</i> (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (<i>Levy v. Superior Court</i> (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”)). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (<i>J.B.B. Investment Partners, Ltd. v. Fair</i> (2014) 232 Cal.App.4th 974, 985). “Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Prods., Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (<i>Id.</i>) The court may

not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff Wells Fargo asserts that the parties entered into a settlement agreement pursuant to Code of Civil Procedure section 664.6 on October 2, 2024. (Exhibit 1 attached to Declaration of Edgar B. Lopez “Lopez Decl.” ¶ 3). The Plaintiff filed a notice of settlement on May 5, 2023. (Motion, p. 3). The total settlement agreement was for Defendant Tran to pay Plaintiff \$4,360.16 for the account balance. (Lopez Decl. ¶¶ 4 and 8). It is undisputed that the Defendant made a total payments of \$4,087.13. (*Id.*, at ¶ 5). Thus, the remaining balance is \$273.00. Plaintiff also seeks \$300.00 in costs comprised of \$225.00 in filing fees and \$75.00 in service of process fees. (*Id.*, at ¶ 9). Plaintiff waives prejudgment legal interest. (*Id.*). In total, Plaintiff now seeks to collect the remaining amount of \$573.00. (MPA, p. 4).

The agreement also addressed that failure to comply with the payment schedule may result in a default. (Lopez Decl. ¶ 6; Exhibit 2). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all the parties to the agreement and filed with the Court. (*Id.*). On September 16, 2024, Plaintiff sent the defendant a letter seeking payment of the balance and reiterated the terms of the agreement. (*Id.*). Thus, Plaintiff has met its burden.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on September 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION :

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff in the amount of \$573.00 against Defendant Tran. The Court will prepare the Order

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Calendar Line # 3
Case Name Zhao Zheng vs Ming Lin
Case No. 23CV416606
Motion for Terminating and Monetary Sanctions I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a partition of single-family residence located at 1563 Mackey Avenue, San Jose, California (“Subject Property”) that is co-owned by Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”) and Defendant/Cross Complainant Ming Zhang Lin (“Lin”). Plaintiff filed her Complaint on May 23, 2023 alleging three causes of actions: (1) partition; (2) declaratory relief; and (3) accounting. Defendant Zhang filed an Answer on July 20, 2023. On July 28, 2025, Defendant filed a Cross-Complaint alleging fraud, perjury and misrepresentation to the court, and constructive trust. Plaintiff Zheng filed a demurrer to the cross complaint that was sustained on May 19, 2026. B. RELEVANT PROCEDURAL BACKGROUND Plaintiff propounded initial discovery on Defendant including: Form Interrogatory (“FROG”), Special Interrogatory (SPRG); Request for Production of Documents (“RFPD”) on September 3, 2024. (Declaration of Woody Wu (“Wu Decl.”) ¶ 2; Exhibit A). Responses were due by October 8, 2024. (<i>Id.</i>, ¶ 3). Defense did not seek an extension and did not provide responses despite Plaintiff’s counsels attempts to meet and confer before filing a motion to compel. (<i>Id.</i>, ¶¶ 3-4). Subsequently, Plaintiff filed a motion to compel and request for sanctions. (<i>Id.</i>, ¶ 5). On April 23, 2025, the Honorable Shella Deen heard the unopposed motion and granted the motion, ordered Defendant to serve verified code-complaint responses and responsive documents and awarded Plaintiff sanctions in the amount of \$1,410.00, which Defendant was ordered to pay within 45 days of a formal order. The formal order was executed by Judge Deen on May 1, 2025. (<i>Id.</i>, ¶¶ 5-8; Exhibit B). From April 2025 to the January 2026, Plaintiff attempted to meet and confer with Defendant regarding the order, and potential need to file a motion for terminating and monetary sanctions. (<i>Id.</i>, ¶¶ 8-11). C. PRESENT MOTION Before the court is Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”)’s motion for sanctions that was filed on January 6, 2026. The motion was accompanied by a proof of service indicating electronic on Defendant/Cross Complainant Ming Zhang Lin (“Lin”) on that same day. Plaintiff seeks terminating sanctions and seeks an order striking Defendant’s Answer and Cross-Complaint and monetary sanctions in the amount of \$3,260.00 against Defendant Lin for failure to comply with the May 1, 2025 Court Order. Plaintiff’s motion is based on Defendant’s failure to comply with discovery process and court orders. (Plaintiff’s motion, p. 2-3). Defendant Lin filed an opposition on August 31, 2026. On September 4, 2026, Plaintiff filed a reply brief. The Court has carefully reviewed the following: Plaintiff Zheng’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Woody Wu and attached Exhibits A-C (totaling 21 pages); Opposition filed by Defendant Lin (totaling 8 pages); Declaration of Ming Zhang Lin in support of the Opposition and attached Exhibits A–D (totaling 30 pages); Plaintiff Zheng’s reply brief (totaling 5 pages); Declaration of Woody Wu in support of the reply brief and attached Exhibit A (totaling 30 pages); proofs of services; and the pleadings. // //

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Plaintiff Zheng seeks terminating and monetary sanctions against Defendant Zheng. Plaintiff asserts that terminating sanctions are necessary in this case as Defendant violates court order and willfully fails to comply with discovery. (Plaintiff’s Motion, p. 5-6). Plaintiff asserts that Defendant has a history of violating discovery and court orders throughout this case, including the May 1, 2025 discovery and sanctions order issued by Judge Deen. (*Id.*). Plaintiff argues that she is prejudiced by Defendant’s misuse and refusal to comply with discovery and orders as Plaintiff cannot test Defendant’s denials or prepare for trial on any issues concerning the allocation of property-related financial obligation. (*Id.*, at p. 7). Plaintiff argues monetary sanctions are also appropriate in this matter as Defendant’s failure to comply has resulted in the need to file motions, which have been expensive and burdensome. (*Id.*, at p. 8). Plaintiff’s counsel seeks \$3,260.00 in fees and costs in sanctions against Defendant. The amount is comprised of eight hours of work at the hourly rate of \$400.00 per hour and \$60.00 in filing fees. (Wood Decl., ¶ 14).

The Court notes that on March 24, 2026, the court heard Defendant’s motion to set aside discovery sanctions that were issued by the Honorable Shella Deen following the above mentioned April 23, 2025 motion to compel further response to FROG, SPROG, RFPD, and sanctions and the May 1, 2025 motion to deem requests for admissions

deem admitted. Both motions were unopposed and granted. Judge Deen awarded sanctions in each motion in the amount of \$1,410.00 for a total of \$3,260.00 total. After the hearing, the Court denied the motion.

Defendant admits that his prior responses to discovery were deficient and untimely. (Opposition, ¶ 5). Defendant argues that he has complied with the order by providing supplemental responses, paid of \$1,410.00 of sanctions on August 30, 2026, and is willing to produce supplemental specific responses with further clarification. (Wu Decl. ¶ 2, 6-7; Exhibit B). Defendant argues that terminating sanctions are drastic and sanctions must be incremental. (*Id.*, p. 5-6; citing *Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at 992). Defendant argues that terminating sanctions would eliminate his entire defense. (*Id.*). Defendant also emphasizes his pro per status and age of the records as grounds for the delay. (*Id.*). Defense seeks an order denying terminating sanctions, and monetary sanctions, or in the alternative, a reduction in monetary sanctions. (*Id.*, p. 7).

The Court as previously addressed with Defendant Lin, notes that self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444). Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *see also Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”]). The discovery rules under Code of Civil Procedure and Rules of Court apply equally to Plaintiff and Defendant Lin.

Plaintiff argues that Defendant waived nearly eight months after this motion was filed and sixteen days before the hearing to serve supplemental responses. (Reply, p. 1). Plaintiff’s counsel asserts that Defendant served deficient unverified responses. (*Id.*). However, it is undisputed that verifications were served on September 1, 2026. (*Id.*). Plaintiff’s argue that Defendant’s lack of diligence, conscious or intentional failure to act, provides grounds for sanctions. (*Id.*, at p. 2, citing *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787-788). Aside from late verifications, Plaintiff argues that Defendant continues to lodge evasive and nonresponsive answers, and specifically points to defendant’s responses to the following: RFPD No. 3; FROG Nos. 2.3 and 9.1; SPROG Nos. 5, 11, 13, and 15. (Reply, at p. 4-5). As to the payment of prior sanctions, Plaintiff asserts that the basis of the motion is not just based on the unpaid sanctions, but the fourteen month delay due to Defendant’s noncompliance. (*Id.*, at p. 5). Thus, Plaintiff seeks evidentiary sanctions to strike Defendant’s Answer and Cross Complaint, award monetary sanctions in the amount of \$3,260.00, or in the alternative, preclude Defendant from offering any evidence or motion at trial regarding “. . . contributions, payments, expenses, repairs, improvements, taxes, or insurance premiums not produced by a date certain, together with an order compelling full production and answers stating actual amounts. . . ” (*Id.*).

The Court finds that Plaintiff has met its burden on showing that Defendant Lin has not complied with court orders to provide verified and code compliant responses and sanctions as noted above. Plaintiff has demonstrated that fourteen months has lapsed and resulted in prejudice in evaluating Defendant’s defenses and preparing for trial. The Court notes that there have been at least two separate discovery and sanctions granted and undue delay. However, the Defendant has submitted verified further responses to the discovery, *prior* to this hearing, and payment of one of the sanctions awarded, which demonstrates an effort to comply. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky*, *supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court DENIES the request to impose terminating or evidentiary sanctions. However, the Court GRANTS monetary award sanctions. The Court will award 6 hours of work at the requested hourly rate of

\$400.00 per hour, for a total of \$2,400.00 Defendant Lin is admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. CONCLUSION

Based on the foregoing, the motion for terminating or evidentiary sanctions are DENIED.

The motion for monetary sanctions is GRANTED. Defendant is ordered to pay the Plaintiff \$2,400.00 in monetary sanctions within thirty (30) days of this hearing.

The Court will prepare the formal Order.

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Calendar Lines # 7-8
Case Name Jose Javier Luna-Robles vs Elizabeth Alejo
Case No. 24CV442503
Demurrer (Line # 7) & Motion to Strike (Line # 8) Before the court is a (1) demurrer by Legacy Real Estate and Associates and Saundra Allman to second amended cross-complaint; and (2) Legacy Real Estate and Associates and Saundra Allman’s motion to strike portions of second amended cross-complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> A. COMPLAINT In June of 2021, plaintiff Jose Javier Luna-Robles (“Plaintiff”) owned a residence located at 532 Monroe Street in Santa Clara (“Monroe Property”). (Complaint, ¶9). Plaintiff contacted defendant Elizabeth Alejo (“Alejo”) to refinance the existing loan secured by the Monroe Property. (<i>Id.</i>) Plaintiff wanted to lower his interest rate and to cash out some equity in order to purchase a second residential property to conduct his landscaping service business. (<i>Id.</i>). Plaintiff believed he could purchase another residence, rent the residence to one of his employees, and utilize the back yard of this residence for the operation of his landscaping service business. (<i>Id.</i>). Defendant Alejo advised Plaintiff that purchasing another residential property would be too expensive but told him she knew of a lot that was for sale. (Complaint, ¶10). Plaintiff met with defendant Alejo and the listing agent, Saundra Allman (“Allman”), of the lot for sale at 0 Dobbin Drive in San Jose (“Subject Property”). (<i>Id.</i>). During this visit, defendant Alejo translated all communications with Allman for Plaintiff whose primary language is Spanish although he does speak and understand some English. (<i>Id.</i>). This meeting occurred before Plaintiff made an offer to purchase the Subject Property on June 12, 2021. (<i>Id.</i>). At the time of this meeting, Plaintiff informed defendant Alejo of his interest in purchasing property to use in conducting his landscaping service business. (Complaint, ¶11). Plaintiff informed defendant Alejo that he needed property that would allow him, at a minimum, to store, operate, and access multiple vehicles, trailers, storage containers, and other machinery and equipment. (<i>Id.</i>). Prior to Plaintiff making an offer to purchase the Subject Property, defendant Alejo represented to Plaintiff that he could conduct his landscape servicing business on the Subject Property and that a permit from the City of San Jose was not needed for him to do so. (Complaint, ¶12). Defendant Alejo did not advise Plaintiff to investigate whether the Subject Property’s zoning would allow him to operate his landscape servicing business. (<i>Id.</i>). Defendant Alejo did not, at any time, conduct any investigation of the Subject Property or of Plaintiff’s anticipated use of the Subject Property. (<i>Id.</i>). Plaintiff understood defendant Alejo was representing him in the purchase of the Subject Property, not merely the refinancing of his Monroe Property. (Complaint, ¶13). All oral communications Plaintiff had with respect to the purchase of the Subject Property were with defendant Alejo. (<i>Id.</i>) The purchase agreement identifies defendants Firestone Financial Group (“FFG”) and Carrollson Harry Firestone Jr. (“Firestone”) as Plaintiff’s broker in the purchase of the Subject Property. (<i>Id.</i>). Defendant Alejo held her license to conduct mortgage loan originations with defendant FFG. (Complaint, ¶2). Defendant Alejo operated her mortgage brokerage business under the license issued to defendant Firestone. (Complaint, ¶4). Escrow on the purchase of the Subject Property closed on July 22, 2021. (Complaint, ¶15). At or around the same time, refinance of the Monroe Property was completed. (<i>Id.</i>).

The Subject Property is zoned light industrial and Plaintiff's anticipated use to facilitate his landscape servicing business was not allowed. (Complaint, ¶16). Plaintiff was unaware of this limitation on use before close of escrow. (*Id.*) Defendants did not investigate any issue regarding use of the Subject Property prior to close of escrow nor did defendants advise Plaintiff that he should investigate this issue prior to close of escrow. (*Id.*).

In October 2021, City of San Jose Code Enforcement Division notified Plaintiff he was in violation of the zoning for the Subject Property because he was operating a commercial corporation yard without a special use permit. (Complaint, ¶17). Plaintiff did not learn until September 2022 that even if a special use permit was obtained, the ability to utilize the Subject Property would be restricted due to setback requirements. (Complaint, ¶18). Plaintiff would not have purchased the Subject Property had he been advised of any of these issues and/or limitations with respect to his intended use of the Subject Property. (Complaint, ¶19).

On July 3, 2024, Plaintiff filed a complaint against defendants Alejo; Elizabeth Alejo Residential Mortgage Services, LLC ("Alejo RMS"); Firestone; and FFG asserting causes of action for:

- (1) Breach of Fiduciary Duty
- (2) Constructive Fraud
- (3) Intentional Misrepresentation
- (4) Negligent Misrepresentation

On October 2, 2024, defendants Alejo, Alejo RMS, Firestone, and FFG jointly filed an answer to Plaintiff's complaint and also filed a cross-complaint against, among others, cross-defendants Allman and Legacy Real Estate and Associates ("Legacy").

On March 4, 2025, defendants filed a first amended cross-complaint ("FAXC").

On May 5, 2025, cross-defendants Allman and Legacy filed a demurrer and motion to strike the FAXC.

In a November 4, 2025 minute order, the court (Hon. Deen) sustained cross-defendants Allman and Legacy's unopposed demurrer with leave to amend.

On November 19, 2025, defendants/ cross-complainants filed the now operative second amended cross-complaint ("SAXC").

B. SECOND AMENDED CROSS-COMPLAINT

The SAXC alleges cross-defendant Jose Luis Jr. Rico ("Rico") owned the Subject Property. (SAXC, p. 3). Cross-defendants Allman and Legacy listed the Subject Property for sale on behalf of cross-defendant Rico. (*Id.*) Cross-defendant Rico completed real estate disclosure documents as part of the listing procedure in which he denied the "existence or pendency of any rent control, occupancy restrictions or retrofit requirements that apply or could affect the Property" or whether there existed "any past or present known material facts or other significant items affecting the value or desirability of the Property not otherwise disclosed to Buyer." (*Id.*).

In or about June 2021, defendant/ cross-complainant Alejo and Plaintiff visited the Subject Property on two occasions for visual inspections of the premises at which time it was noted that RV vehicles, trailers, and industrial equipment occupied the Subject Property. (SAXC, pp. 3 – 4). Cross-defendants' usage of the Subject Property impressed Plaintiff who also wanted to use the Subject Property to store vehicles, trailers, and equipment for his landscaping business. (SAXC, p. 4).

Cross-defendant Rico had actual knowledge of a San Jose Code Enforcement Complaint of the Subject Property opened on January 8, 2021. (SAXC, p. 4). Cross-defendants Allman and Legacy knew or should have known of the nonconforming use of the Subject Property through their interactions with cross-defendant Rico combined with their inspection of the Subject Property and their knowledge of similar properties in the locality. (*Id.*). No disclosures, either verbal or written, were made by any cross-defendants that cross-defendant Rico's use of the Subject Property was illegal or restricted in any manner. (*Id.*) Cross-defendants failed to disclose to cross-complainants the existence of the San Jose Code Enforcement Complaint and failed to advise cross-complainants that the visible use of the Subject Property by cross-defendants was illegal and under investigation by the City of San Jose. (SAXC, p. 5).

The SAXC asserts the following causes of action against cross-defendants Rico, Allman, and Legacy:

- (1) Fraudulent Concealment [against cross-defendant Rico]
- (2) Intentional Misrepresentation [against cross-defendant Rico]
- (3) Negligent Misrepresentation [against cross-defendant Rico]
- (4) Total Equitable Indemnity
- (5) Equitable Apportionment of Fault

On January 1, 2026, cross-defendants Allman and Legacy filed the two motions now before the court: (1) a demurrer to the fourth and fifth causes of action of defendants/ cross-complainants' SAXC; and (2) a motion to strike portions of defendants/ cross-complainants' SAXC.

II. LEGAL STANDARD

A. DEMURRER

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

Generally, "indemnity refers to 'the obligation resting on one party to make good a loss or damage another party has incurred.' " (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1157 [90 Cal.Rptr.3d 732, 202 P.3d 1115] (*Prince*), quoting *Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628 [119 Cal.Rptr. 449, 532 P.2d 97]). There are two basic types of indemnity: express indemnity, which relies on an express contract term providing for indemnification, and equitable indemnity, which embraces "traditional equitable indemnity" and implied contractual indemnity. (*Prince*, at pp. 1157–1159).

Traditional equitable indemnity and implied contractual indemnity share a key feature that distinguishes them from express indemnity: unlike express indemnity, ***neither traditional equitable indemnity nor implied contractual indemnity is available "in the absence of a joint legal obligation to the injured party."*** (*Id.* at pp. 1160–1161). Under this principle, " ' ***"there can be no indemnity without liability," ' "that is, the indemnitee and the indemnitor must share liability for the injury.*** (*Id.* at p. 1165, quoting *Children's Hospital v. Sedgwick* (1996) 45 Cal.App.4th 1780, 1787 [53 Cal.Rptr.2d 725]). ***Thus, no indemnity may be obtained from an entity that has no pertinent duty to the injured third party (Prince, supra, 45 Cal.4th at p. 1159), that is immune from liability (id. at pp. 1168–1169), or that has been found not to be responsible for the injury (Children's Hospital v. Sedgwick,***

supra, 45 Cal.App.4th at p. 1787). (*Jocer Enterprises, Inc. v. Price* (2010) 183 Cal.App.4th 559, 573-574; emphasis added).

B. MOTION TO STRIKE

Under Code of Civil Procedure section 435, “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1)). Code of Civil Procedure section 436 provides:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436). In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63).

III. ANALYSIS

A. CROSS-DEFENDANTS ALLMAN AND LEGACY’S DEMURRER TO THE SAXC IS OVERRULED

In demurring, cross-defendants Allman and Legacy contend their liability is premised on an allegation that they “should have known of the nonconforming use of the Subject Property.” Cross-defendants Allman and Legacy contend they have no such obligation as a matter of law. According to cross-defendants Allman and Legacy, “There are no allegations in the SACC that the seller’s agents knew about this non-conforming use and that the seller told the seller’s agents which in return hid this information from the buyer.” (See page 2, lines 19 – 22, of the Memorandum of Points and Authorities in Support of Legacy Real Estate and Associates and Sandra Allman’s Demurrer to Second Amended Cross-Complaint).

However, cross-defendants Allman and Legacy overlook the allegation at page 4, lines 23 – 26, where cross-complainants allege cross-defendants Allman and Legacy “*knew* or should have known of the nonconforming use of the Property through their interactions with Cross-Defendant RICO . . . , combined with their inspection of the Property and their knowledge of similar properties in the locality.” (emphasis added). The Court notes that Cross-defendant Allman and Legacy seemingly acknowledge this very allegation [of their knowledge] at page 4, lines 17 and 23, of their Memorandum of Points and Authorities in Support of Legacy Real Estate and Associates and Sandra Allman’s Demurrer to Second Amended Cross-Complaint, but then go on to focus on the balance of the allegation that they “should have known of the nonconforming use.”

A defendant’s knowledge is an averment of fact. Pleading alternative and inconsistent allegations is permissible.¹

¹ It is true that modern rules of pleading generally permit plaintiffs to “set forth alternative theories in varied and inconsistent counts.” (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29 [223 Cal. Rptr. 806]; see *Mendoza v. Continental Sales Co., Inc.* (2006) 140 Cal.App.4th 1395, 1402 [45 Cal. Rptr. 3d 525] [“the modern practice allows that party to plead in the alternative and make inconsistent allegations”]). Thus, if a plaintiff was uncertain as to whether the parties had entered into an enforceable agreement, the plaintiff would be entitled to plead inconsistent claims predicated on both the existence and absence of such an agreement. (See *Rader Co. v. Stone, supra*, 178 Cal.App.3d at p. 29 [plaintiff “is not precluded by law from alleging in one cause of action the breach of a contract and an inconsistent theory of recovery in another cause of action”]). (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1388).

It is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property which are known or accessible only to him and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer. [Citations omitted]. Failure of the seller to fulfill such duty of disclosure constitutes actual fraud. [Citations omitted].

The real estate agent or broker representing the seller is a party to the business transaction. In most instances he has a personal interest in it and derives a profit from it. [Footnote omitted.] ***Where such agent or broker possesses, along with the seller, the requisite knowledge according to the foregoing decisions, whether he acquires it from, or independently of, his principal, he is under the same duty of disclosure.***

(*Lingsch v. Savage* (1963) 213 Cal.App.2d 729, 735 – 736; emphasis added).

Accordingly, cross-defendants Allman and Legacy's demurrer to the fourth and fifth causes of action of cross-complainants' SAXC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for total equitable indemnity and equitable apportionment of fault, respectively, is OVERRULED.

B. CROSS DEFENDANTS ALLMAN AND LEGACY'S MOTION TO STRIKE PORTIONS OF CROSS COMPLAINANTS' SAXC IS DENIED

1. Actual Damages

Cross-defendants move to strike cross-complainants' prayer for actual damages by citing *Fragale v. Faulkner* (2003) 110 Cal.App.4th 229, 236 where the court held:

Civil Code section 3343 provides the exclusive measure of damages for fraud in such cases. "One defrauded in the purchase, sale or exchange of property is entitled to recover the difference between the actual value of that with which the defrauded person parted and the actual value of that which he received . . .". (Civ. Code, § 3343, subd. (a)).

In opposition, cross-complainants contend the damages sought from cross-defendants Allman and Legacy are limited to the fourth and fifth causes of action for equitable indemnity/ apportionment of fault as those are the only two causes of action being asserted against Allman and Legacy. The court similarly views the prayer for actual damages as not being directed against cross-defendants Allman and Legacy.

For that reason, cross-defendants Allman and Legacy's motion to strike the prayer for actual damages is DENIED.

2. Punitive / Exemplary Damages

Likewise, as cross-complainants note in their opposition, the SAXC seeks punitive/ exemplary damages limited to cross-defendant Rico only, not from cross-defendants Allman and Legacy. Based on that concession, cross-defendants Allman and Legacy's motion to strike the prayer for punitive damages is DENIED.

3. Declaratory Relief

Finally, cross-defendants Allman and Legacy move to strike cross-complainants' prayer for declaratory relief as cross-complainants have not alleged any cause of action for declaratory relief. Although not cited by either party, "a cross-complaint for equitable indemnity properly takes the form . . . of an action for declaratory relief." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 285). Cross-complainants have not adopted that form here in the SAXC, but the court finds it unnecessary to elevate form over substance.

IV. CONCLUSION

Based on the foregoing, cross-defendants Allman and Legacy's demurrer to the fourth cause of action - total equitable indemnity and fifth causes of action -equitable apportionment of fault of cross-complainants' SAXC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for total equitable indemnity and equitable apportionment of fault, respectively, is OVERRULED.

Accordingly, cross-defendants Allman and Legacy's motion to strike the prayer for declaratory relief is DENIED.

The Court will provide the formal Order.

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Calendar Line # 9
Case Name Chung Bao vs Shih-Jen Lin et al
Case No. 25CV479927
Motion to Quash Before the court is specially appearing defendant Global Win Technology Co. Ltd.’s motion to quash service of summons for lack of personal jurisdiction. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Defendant Global Win Technology Company Limited (“GW”) was founded in 1992 in Taiwan by defendant Shih Jen (Andy) Lin (“Lin”) to design and manufacture fans and cooling systems for electronic devices. (Complaint, ¶12). Plaintiff Chung Bao (“Bao”) has been employed by defendant GW since 1996. (Complaint, ¶13). In 1997, plaintiff Bao moved to the United States to set up and operate defendant Acadia Technology, Inc. (“Acadia”), a wholly-owned subsidiary of defendant GW. (Complaint, ¶14). Defendant Acadia was created to operate as defendant GW’s United States office for sales and returns. (Complaint, ¶15). Defendants GW and Acadia are owned by defendant Lin. (Complaint, ¶14). Plaintiff Bao has no ownership interest or shares in defendant Acadia. (Complaint, ¶15). Despite the lack of ownership, plaintiff Bao loaned defendant Acadia \$393,359.21 for operating capital (“Loan”). (Complaint, ¶16). Defendant Lin told plaintiff Bao to operate defendant Acadia including funding it when necessary. (<i>Id.</i>) The Loan was for the benefit of defendants GW, Acadia, and Lin. (Complaint, ¶17). Neither defendants GW, Acadia, nor Lin have repaid the Loan to plaintiff Bao. (Complaint, ¶18). The Loan is due upon plaintiff Bao’s termination from the company. (Complaint, ¶19). Plaintiff Bao is still employed by defendant Acadia. (Complaint, ¶20). Defendants Lin and GW have demonstrated through communications with plaintiff Bao that they do not intend to repay plaintiff Bao for the Loan now or upon termination of his employment with defendants GW and Acadia. (Complaint, ¶21). Defendant Acadia’s current financial situation make it impossible for defendant Acadia to repay the Loan. (Complaint, ¶22). Plaintiff Bao has not received a salary from defendant GW or Acadia since 2020. (Complaint, ¶25). Unpaid wages owed to plaintiff Bao for the last four years amounts to \$33,911.76. (Complaint, ¶26). On November 12, 2025, plaintiff Bao filed a complaint against defendants GW, Lin, and Acadia asserting causes of action for: (1) Anticipatory Repudiation – Breach of Loan Agreement (2) Breach of the Employment Contract (3) Failure to Pay Wages in Violation of California Labor Code §204 and §1194 (4) Unfair Competition in Violation of California Business & Professions Code §17200 et seq. (5) Failure to Pay Minimum Wage, California Labor Code §§1194, 1197 On January 2, 2026, defendant Acadia filed an answer to plaintiff Bao’s complaint. On April 21, 2026, specially appearing defendant GW filed the motion now before the court, a motion to quash service of summons for lack of personal jurisdiction.

On April 24, 2026, defendant Lin filed an answer to plaintiff Bao's complaint.

II. LEGAL STANDARD

Code of Civil Procedure section 418.10, subdivision (a)(1) states, in pertinent part, "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her."

"Although the defendant is the moving party, the burden of proof is on the plaintiff." (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶3:384, p. 121 citing *Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793 (*Floveyor*), et al.). "When jurisdiction is challenged by a nonresident defendant, the burden of proof is on the plaintiff to demonstrate that sufficient 'minimum contacts' exist between the defendant and the forum state to justify imposition of personal jurisdiction." (*Sibley v. Superior Court* (1976) 16 Cal.3d 442, 445). "[T]he burden of proof is upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (*Evangelize China Fellowship, Inc. v. Evangelize China Fellowship, Hong Kong* (1983) 146 Cal.App.3d 440, 444; *Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062 (*Snowney*); *HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1167-1168 (*HealthMarkets*); *In re Automobile Antitrust Cases I and II* (2005) 135 Cal.App.4th 100, 110). The burden must be met by competent affidavits containing specific evidentiary facts or authenticated documentary evidence, not by allegations of an unverified complaint. (*In re Automobile Antitrust Cases I and II*, at p. 110). If plaintiffs satisfy that burden, the burden shifts to the defendant to show the exercise of jurisdiction would be unreasonable. (*HealthMarkets*03, at p. 1168; *Snowney*, at p. 1062).

III. ANALYSIS

As it is plaintiff Bao's burden to establish jurisdiction, the court looks first at plaintiff Bao's opposition papers. "California courts may exercise personal jurisdiction on any basis consistent with the Constitution of California and the United States. [Citation.] The exercise of jurisdiction over a nonresident defendant comports with these Constitutions "if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate "traditional notions of fair play and substantial justice." " " [Citations]. [¶] "The concept of minimum contacts . . . requires states to observe certain territorial limits on their sovereignty. It "ensure[s] that the States, through their courts, do not reach out beyond the limits imposed on them by their status as coequal sovereigns in a federal system." " [Citation.] To do so, the minimum contacts test asks "whether the "quality and nature" of the defendant's activity is such that it is "reasonable" and "fair" to require him to conduct his defense in that State." [Citation.] The test "is not susceptible of mechanical application; rather, the facts of each case must be weighed to determine whether the requisite "affiliating circumstances" are present." " (*Snowney, supra*, 35 Cal.4th at pp. 1061-1062).

Pursuant to Code of Civil Procedure section 410.10, California's long-arm statute, "[a] court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." The long-arm statute "manifests an intent to exercise the broadest possible jurisdiction," limited only by constitutional considerations of due process. (*Sibley v. Superior Court* (1976) 16 Cal.3d 442, 445, [128 Cal. Rptr. 34, 546 P.2d 322]; *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 444 (*Vons*), [58 Cal. Rptr. 2d 899, 926 P.2d 1085]). The general rule is that a state may exercise personal jurisdiction over a nonresident defendant "if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate "traditional notions of fair play and substantial justice." (*Vons Companies, Inc. v. Seabest Foods, Inc., supra*, 14 Cal.4th at p. 444, quoting *International Shoe Co. v. Washington* (1945) 326 U.S. 310, 326, [90 L. Ed. 95, 66 S. Ct. 154]). Stated another way, "the forum state may not exercise jurisdiction over a nonresident unless his [or her] relationship to the state is such as to make the exercise of such jurisdiction

reasonable.” (*Cornelison v. Chaney* (1976) 16 Cal.3d 143, 147, [127 Cal. Rptr. 352, 545 P.2d 264]). As these tests suggest, the question of jurisdiction cannot be answered by the application of precise formulas or mechanical rules. Each case must be decided on its own facts. (*Id.* at p. 150).

Personal jurisdiction may be either general or specific. (*Helicopteros Nacionales de Colombia, S.A. v. Hall* (1984) 466 U.S. 408, 414-415, [80 L. Ed. 2d 404, 104 S. Ct. 1868]; *Vons Companies, Inc. v. Seabest Foods, Inc.*, *supra*, 14 Cal.4th at p. 445). General jurisdiction may lie for all purposes if a defendant has established a presence in the forum state by virtue of activities in the state which are “extensive or wide-ranging” (*Buckeye Boiler Co. v. Superior Court* (1969) 71 Cal.2d 893, 898-899, [80 Cal. Rptr. 113, 458 P.2d 57]) or “substantial . . . continuous and systematic.” (*Cornelison v. Chaney*, *supra*, 16 Cal.3d at p. 148). In such a case a defendant’s contacts “take the place of physical presence in the forum as a basis for jurisdiction.” (*Vons Companies, Inc. v. Seabest Foods, Inc.*, *supra*, 14 Cal.4th at p. 446).

(*Integral Development Corp. v. Weissenbach* (2002) 99 Cal.App.4th 576, 583 – 584 (*Integral*)).

A. GENERAL JURISDICTION

A defendant whose contacts with a state are "substantial" or "continuous and systematic" can be haled into court in that state in any action, even if the action is unrelated to those contacts. See *Helicopteros Nacionales de Colombia, S.A. v. Hall*, 466 U.S. 408, 415, 80 L. Ed. 2d 404, 104 S. Ct. 1868 (1984). This is known as general jurisdiction. The standard for establishing general jurisdiction is "fairly high," *Brand v. Menlove Dodge*, 796 F.2d 1070, 1073 (9th Cir. 1986), and requires that the defendant's contacts be of the sort that approximate physical presence. See *Gates Lear Jet Corp. v. Jensen*, 743 F.2d 1325, 1331 (9th Cir. 1984). Factors to be taken into consideration are whether the defendant makes sales, solicits or engages in business in the state, serves the state's markets, designates an agent for service of process, holds a license, or is incorporated there. See *Hirsch v. Blue Cross, Blue Shield of Kansas City*, 800 F.2d 1474, 1478 (9th Cir. 1986).

(*Bancroft & Masters, Inc. v. Augusta Nat'l Inc.* (9th Cir. 2000) 223 F.3d 1082, 1086; see also *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 536 (*Sonora*)).

“We start with the firm proposition that neither ownership nor control of a subsidiary corporation by a foreign parent corporation, without more, subjects the parent to the jurisdiction of the state where the subsidiary does business.” (*Sonora*, *supra*, 83 Cal.App.4th at p. 540). By plaintiff’s own allegation, defendant GW is incorporated in Taiwan and wholly owns a subsidiary California corporation, defendant Acadia. (Complaint, ¶¶3 – 4, 12, and 14). Under *Sonora*, ownership alone is insufficient to subject defendant GW to general jurisdiction in California.

1. *Alter Ego*

Alternatively, plaintiff Bao makes the argument that defendant Acadia is the alter ego of defendant GW and defendant Acadia’s presence in California must be attributed to defendant GW, “so that in legal effect [GW] was a California corporation engaged in an ongoing California business and subject to the general jurisdiction of the California courts.” (*Sonora*, *supra*, 83 Cal.App.4th at p. 537). Plaintiff Bao also appears to argue that defendant Acadia is defendant Lin’s alter ego. Such a showing, however, would not aid in establishing personal jurisdiction against defendant GW.

Ordinarily, a corporation is regarded as a legal entity, separate and distinct from its stockholders, officers and directors, with separate and distinct liabilities and obligations. (*Wenban Estate, Inc. v. Hewlett* (1924) 193 Cal. 675, 696 [227 P. 723]; *Communist Party v. 522 Valencia, Inc.* (1995) 35 Cal. App. 4th 980, 993 [41 Cal. Rptr. 2d 618]; *Robbins v. Blecher* (1997) 52 Cal. App. 4th 886, 892 [60 Cal. Rptr. 2d 815]). A corporate identity may be disregarded--the "corporate veil" pierced--where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. (*Roman Catholic Archbishop v. Superior Court* (1971) 15 Cal. App. 3d

405, 411 [93 Cal. Rptr. 338]). Under the alter ego doctrine, then, when the corporate form is used to perpetrate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation's acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. (*Robbins v. Blecher, supra*, 52 Cal. App. 4th at p. 892; *Communist Party v. 522 Valencia, Inc., supra*, 35 Cal. App. 4th at pp. 993-994). The alter ego doctrine prevents individuals or other corporations from misusing the corporate laws by the device of a sham corporate entity formed for the purpose of committing fraud or other misdeeds. (*Associated Vendors, Inc. v. Oakland Meat Co.* (1962) 210 Cal. App. 2d 825, 842 [26 Cal. Rptr. 806]).

In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone. (*Automotriz etc. De California v. Resnick* (1957) 47 Cal. 2d 792, 796 [306 P.2d 1, 63 A.L.R.2d 1042]; *Hennessey's Tavern, Inc. v. American Air Filter Co.* (1988) 204 Cal. App. 3d 1351, 1358 [251 Cal. Rptr. 859]; *Alberto v. Diversified Group, Inc., supra*, 55 F.3d at p. 205; *Calvert, supra*, 875 F. Supp. at p. 678). "Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other." (*Roman Catholic Archbishop v. Superior Court, supra*, 15 Cal. App. 3d at pp. 406, 411; *Associated Vendors, Inc. v. Oakland Meat Co., supra*, 210 Cal. App. 2d at pp. 838-839). Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers. (See *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal. App. 4th 1269, 1285 [31 Cal. Rptr. 2d 433]; *Associated Vendors, Inc. v. Oakland Meat Co., supra*, 210 Cal. App. 2d at pp. 838-839; *Alberto v. Diversified Group, Inc., supra*, 55 F.3d at p. 205). No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied. (*Talbot v. Fresno-Pacific Corp.* (1960) 181 Cal. App. 2d 425, 432 [5 Cal. Rptr. 361]). Alter ego is an extreme remedy, sparingly used. (*Calvert, supra*, 875 F. Supp. at p. 678).

(*Sonora, supra*, 83 Cal.App.4th at pp. 538-539).

Plaintiff Bao proffers evidence which he suggests support a finding on the first condition necessary to invoke the alter ego doctrine that "a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist." However, as plaintiff Bao recognizes and as noted above, application of the alter ego doctrine also requires "an inequitable result if the acts in question are treated as those of the corporation alone." Just as in *Sonora*,

at least one of the two essential elements of the alter ego doctrine was not established; there was no evidence of any wrongdoing by either Diamond or Sonora Mining or any evidence of injustice flowing from the recognition of Sonora Mining's separate corporate identity. Without such evidence, the alter ego doctrine cannot be invoked.

(*Id.* at p. 539).

Plaintiff Bao here has not made a sufficient evidentiary showing of any wrongdoing by either defendants GW or Acadia. Initially, it is not enough for plaintiff Bao to rely on the allegations of his complaint. (*Id.* at p. 540—"The District is plainly wrong to the extent it claims the inclusion in a complaint of alter ego allegations automatically gives the trial court jurisdiction over the defendant against whom such allegations are directed. . . . the plaintiff, in

opposing the defendant's motion to quash, must present evidence to justify a finding that the requisite jurisdictional minimum contacts exist”).

Plaintiff Bao does submit his own declaration wherein he states he loaned money to defendant Acadia for operating capital over a number of years attaching copies of checks drawn on [plaintiff Bao’s account] that [plaintiff Bao] deposited into defendant Acadia’s bank account between 2012 and 2021. (See ¶7 and Exh. A to the Declaration of Chung Bao in Support of Opposition to GlobalWIN Technology Company Limited’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction (“Declaration Bao”). However, plaintiff Bao’s opposition includes evidence denying any such loan. (See ¶9 and Exh. B to the Declaration of Edward A. Kraus in Support of Plaintiff Chung Bao’s Opposition, etc. (“Declaration Kraus”).

2. Agency/ Representative Service Doctrine

As yet another alternative, plaintiff Bao contends “Agency may confer general jurisdiction in the forum state over a foreign corporation.” (*Id.* at p. 540).

The relationship of owner to owned contemplates a close financial connection between parent and subsidiary and a certain degree of direction and management exercised by the former over the latter. (*Rollins Burdick Hunter of So. Cal., Inc. v. Alexander & Alexander Services, Inc.*, *supra*, 206 Cal. App. 3d at p. 9; *Calvert*, *supra*, 875 F. Supp. at pp. 678-679).

However, the case law identifies one situation when the acts of the parent may be found to trespass the boundaries of legitimate ownership and control of the subsidiary and expose the parent to the power of the state in which the subsidiary does business. Thus, where the nature and extent of the control exercised over the subsidiary by the parent is so pervasive and continual that the subsidiary may be considered nothing more than an agent or instrumentality of the parent, notwithstanding the maintenance of separate corporate formalities, jurisdiction over the parent may be grounded in the acts of the subsidiary/agent. (*Clark*, *supra*, 811 F. Supp. 1061, 1067). In this instance, the question is not whether there exists justification to disregard the subsidiary's corporate identity, the point of the alter ego analysis, but instead whether the degree of control exerted over the subsidiary by the parent is enough to reasonably deem the subsidiary an agent of the parent under traditional agency principles. [Footnote.] (*Ibid.*) The jurisdiction acquired by the forum state under this rationale is general. (*Ibid.*) Control is the key characteristic of the agent/principal relationship. (*Cislaw v. Southland Corp.* (1992) 4 Cal. App. 4th 1284, 1292-1296 [6 Cal. Rptr. 2d 386]).

Accordingly, if a parent corporation exercises such a degree of control over its subsidiary corporation that the subsidiary can legitimately be described as only a means through which the parent acts, or nothing more than an incorporated department of the parent, the subsidiary will be deemed to be the agent of the parent in the forum state and jurisdiction will extend to the parent. (See *Rollins Burdick Hunter of So. Cal., Inc. v. Alexander & Alexander Services, Inc.*, *supra*, 206 Cal. App. 3d at p. 9; *Kramer Motors, Inc. v. British Leyland, Ltd.* (9th Cir. 1980) 628 F.2d 1175, 1177; *Escude Cruz v. Ortho Pharmaceutical Corp.*, *supra*, 619 F.2d at p. 905; *Calvert*, *supra*, 875 F. Supp. 674; *Clark*, *supra*, 811 F. Supp. at p. 1067; *Gallagher v. Mazda Motors of America, Inc.* (E.D.Pa. 1992) 781 F. Supp. 1079, 1083-1084 (*Gallagher*); *Bellomo v. Pennsylvania Life Co.* (S.D.N.Y. 1980) 488 F. Supp. 744 (*Bellomo*)).

The nature of the control exercised by the parent over the subsidiary necessary to put the subsidiary in an agency relationship with the parent must be over and above that to be expected as an incident of the parent's ownership of the subsidiary and must reflect the parent's purposeful disregard of the

subsidiary's independent corporate existence. (See *Rollins Burdick Hunter of So. Cal., Inc. v. Alexander & Alexander Services, Inc.*, *supra*, 206 Cal. App. 3d at p. 9). The parent's general executive control over the subsidiary is not enough; rather there must be a strong showing beyond simply facts evidencing "the broad oversight typically indicated by [the] common ownership and common directorship" present in a normal parent-subsidiary relationship. (*Calvert, supra*, 875 F. Supp. at p. 679; see also *Wells Fargo & Co. v. Wells Fargo Exp. Co.*, *supra*, 556 F.2d at pp. 419-420 and numerous federal cases cited therein). As a practical matter, the parent must be shown to have moved beyond the establishment of general policy and direction for the subsidiary and in effect taken over performance of the subsidiary's day-to-day operations in carrying out that policy. (*Calvert, supra*, 875 F. Supp. at p. 679; see also *Rollins Burdick Hunter of So. Cal., Inc. v. Alexander & Alexander Services, Inc.*, *supra*, 206 Cal. App. 3d at p. 9; *American Intern. Airways v. Kitty Hawk Group* (E.D.Mich. 1993) 834 F. Supp. 222, 225; *Bellomo, supra*, 488 F. Supp. at p. 745).

(*Sonora, supra*, 83 Cal.App.4th at pp. 541-542).

General "jurisdiction [has been found] appropriate [when] the foreign parent corporation permitted the subsidiary to perform acts in the forum state that the parent would otherwise have had to perform itself as a part of the parent's expected business operations. . . . A foreign corporation is doing business in [the forum state] . . . when its [forum state] representative provides services beyond 'mere solicitation' and these services are sufficiently important to the foreign corporation that if it did not have a representative to perform them, the corporation's own officials would undertake to perform substantially similar services." (*Id.* at pp. 542-543; citations and footnotes omitted).

The "representative services" doctrine . . . supports the exercise of jurisdiction when the local subsidiary performs a function that is compatible with, and assists the parent in the pursuit of, the parent's *own* business, but the doctrine does not support jurisdiction where the parent is merely a holding company whose only business pursuit is the investment in the subsidiary." (*Id.* at p. 543; italics original).

In support of application of this "agency" or "representative services" doctrine, plaintiff Bao proffers his declaration wherein he states, "In 1996, at Lin's direction, I moved to the United States to set up and operate, for Lin and [GW], Acadia Technology, Inc. ('Acadia'), a wholly owned subsidiary of [GW]. . . . Acadia was created to operate as [GW's] United States office for sales and returns. I was the only manager here to run day-to-day operations and communications. However, Lin controls the company and decides what the company needs to do. I report to Lin." (See ¶¶4 – 5 of the Declaration Bao).

Plaintiff Bao also cites defendant Lin's testimony offered in support of defendant GW's motion to quash wherein defendant Lin states, "In approximately 1997, I supported the opening of a company in the state of California, for the purpose of assisting [GW] in selling products in California and the United States." (See ¶3 to the Declaration of Shi-Jen Lin in Support of Specially Appearing Defendant Global Win Technology Co. Ltd.'s Memorandum of Points and Authorities in Support of Motion to Quash Service of Summons for Lack of Personal Jurisdiction ("Declaration Lin")).

Even so, the court is of the opinion that there is some temporal aspect to consider in application of the agency/representative services doctrine. In relevant part, defendant GW proffers a declaration from defendant Lin, as CEO of GW, who states, "By 2005, [GW] was consistently losing money and [GW] made the decision to cease operations in California. . . . plaintiff Bao, who was working for [Acadia] pleaded with me to allow him to keep [Acadia] open, so that he could keep his family in the United States and continue with his own projects using the 'Acadia' name. As [plaintiff] Bao was a friend, I did not shut down Acadia. As a result, after 2005, Mr. Bao was completely in charge of Acadia and with the exception of one transaction . . . [GW] did not receive business benefits from [Acadia]. Staring in 2005, [GW] stopped using [Acadia] to sell products." (See ¶¶4 – 6 to the

Declaration Lin). Discovery responses from defendants Acadia and Lin are consistent. (See ¶9 and Exh. A – B to the Declaration Kraus).

Thus, while the agency/ representative services doctrine may have supported general jurisdiction against GW prior to 2005 or even within some reasonable amount of time thereafter, those doctrines no longer support general jurisdiction against defendant GW more than twenty years later in the absence of more contemporaneous evidence.

That defendants GW and Acadia had the same officers is also not enough to establish general jurisdiction. The *Sonora* court held, “that the directors and officers were interlocking is insufficient to rebut the presumption that each common officer or director wore the appropriate ‘hat’ when making corporate and operational decisions for the respective entities.” (*Id.* at p. 549).

The District maintains that the existence of common officers and directors between the two corporations supports the trial court's assumption of jurisdiction. The law is otherwise. It is considered a normal attribute of ownership that officers and directors of the parent serve as officers and directors of the subsidiary. (*United States v. Bestfoods* (1998) 524 U.S. 51, 69 [118 S. Ct. 1876, 1888, 141 L. Ed. 2d 43, 157 A.L.R. Fed. 735]; *AT&T, supra*, 94 F.3d at p. 591; *Calvert, supra*, 875 F. Supp. at p. 678). " 'It is entirely appropriate for directors of a parent corporation to serve as directors of its subsidiary, and that fact alone may not serve to expose]the parent corporation to liability for its subsidiary's acts.' [Citations]. [P] This recognition that the corporate personalities remain distinct has its corollary in the 'well established principle [of corporate law] that directors and officers holding positions with a parent and its subsidiary can and do "change hats" to represent the two corporations separately, despite their common ownership. [Citations].' " (*United States v. Bestfoods, supra*, 524 U.S. at p. 69 [118 S. Ct. at p. 1888].

(*Sonora, supra*, 83 Cal.App.4th at pp. 548-549).

B. SPECIFIC JURISDICTION

Alternatively, plaintiff Bao contends the court can properly exercise specific jurisdiction over defendant GW.

If a nonresident defendant's activities in the state are not sufficient to allow the forum state to exercise general jurisdiction for all purposes, the state may nonetheless exercise specific jurisdiction “if the defendant has purposefully availed himself or herself of forum benefits (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472-473, [85 L. Ed. 2d 528, 105 S. Ct. 2174]) and the ‘controversy is related to or “arises out of” a defendant’s contacts with the forum.’ (*Helicopteros Nacionales De Columbia v. Hall, supra*, 466 U.S. at p. 414) (*Vons Companies, Inc. v. Seabest Foods, Inc., supra*, 14 Cal.4th at p. 446). Once a court decides that a defendant has purposefully established contacts with the forum state and that plaintiff's cause of action arose out of those forum-related contacts, the final step in the analysis involves balancing the convenience of the parties and the interests of the state in order to determine whether the exercise of personal jurisdiction is fair and reasonable under all of the circumstances. (*Burger King Corp. v. Rudzewicz, supra*, 471 U.S. at pp. 477-478; *Vons Companies, Inc. v. Seabest Foods, Inc., supra*, 14 Cal.4th at pp. 447-448).

(*Integral, supra*, 99 Cal.App.4th at pp. 583 – 584).

1. Purposeful Availment

“The non-resident defendant must have purposefully directed its activities at forum residents, or purposefully availed itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of local law.” (Weil & Brown et al., (CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) at ¶3:226, p. 87 citing *Hanson v. Denckla* (1958) 357 U.S. 235, 253; *Vons, supra*, 14 Cal.4th at p. 446). “Purposeful availment exists where the defendant purposefully and voluntarily directs its activities toward the

forum state in an effort to obtain a benefit from that state.” (*Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1067).

“ ‘The purposeful availment inquiry . . . focuses on the defendant’s intentionality. [Citation]. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on’ his contacts with the forum. [Citation]. Thus, the ‘purposeful availment’ requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations], or of the ‘unilateral activity of another party or a third person.’ [Citations.]” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1317).

To establish defendant GW’s purposeful availment, Plaintiff Bao again points to the same evidence discussed earlier, i.e., that in 1996, Acadia was created to operate as [GW’s] United States office for sales and returns (See ¶¶4 – 5 of the Declaration Bao) and defendant Lin’s own testimony that, “In approximately 1997, I supported the opening of a company in the state of California, for the purpose of assisting [GW] in selling products in California and the United States.” (See ¶3 to the Declaration of Shi-Jen Lin in Support of Specially Appearing Defendant Global Win Technology Co. Ltd.’s Memorandum of Points and Authorities in Support of Motion to Quash Service of Summons for Lack of Personal Jurisdiction (“Declaration Lin”)).

2. Claim Arising from Defendant’s Forum-Related Activity

Even if the court assumes the purposeful availment prong has been met, the next element required to establish specific jurisdiction against an out-of-state defendant is that “the controversy is related to or arises out of the defendant’s contacts with the forum.” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 269).

The alleged controversy here is defendant Acadia’s anticipatory breach of a purported loan agreement as well as defendant Acadia’s failure to pay plaintiff Bao wages. In the court’s opinion and as alluded to earlier, such claims are too temporally attenuated from defendant GW’s establishment of Acadia. By plaintiff Bao’s own declaration, his claim for wages dates to 2020. (See ¶16 to the Declaration Bao—“I have not received a salary from [GW] or Acadia since 2020”). By plaintiff Bao’s own allegations, repayment of the Loan “is due upon Bao’s termination from the company. Bao is still currently employed by Acadia.” (Complaint, ¶¶19 – 20). The very existence of the Loan is disputed. Based on the evidence presented, the court is not persuaded that plaintiff Bao has carried his burden of establishing, by a preponderance of the evidence, that he entered into a Loan agreement with defendant Acadia. It follows that plaintiff Bao has not sufficiently tethered any controversy to defendant GW’s creation of defendant Acadia in 1996/ 1997 or operation thereafter.

Plaintiff’s reliance on *Sanders v. CEG Corp.* (1979) 95 Cal.App.3d 779 and *Empire Steel Corp. v. Superior Court of Los Angeles County* (1961) 56 Cal.2d 823 are not persuasive as the court finds them factually dissimilar.

3. Reasonableness

“[T]he plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (*Vons, supra*, 14 Cal. 4th at p. 449). If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating “that the exercise of jurisdiction would be unreasonable.” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 273).

In light of the court’s finding above that plaintiff Bao has not met his initial burden of demonstrating facts justifying the exercise of specific jurisdiction, the court need not reach the final step of balancing the convenience of the parties and the interests of the state in order to determine whether the exercise of personal jurisdiction is fair and reasonable under all of the circumstances.

Plaintiff Bao asks, should the court be inclined to grant the motion to quash, for a continuance of the hearing on the motion to quash to allow him to conduct discovery on the jurisdictional issues. “In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127). Plaintiff’s counsel highlights his declaration stating, in part, that despite meet and confer efforts, defendants continue to object to providing some requested information related to defendant GW’s ownership of Acadia. (See ¶¶12 and 14 to the Declaration Kraus). The evidence cited does not demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction. (See *Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 973—no abuse of discretion in denying a request for continuance of motion to quash to conduct discovery where plaintiffs failed to articulate what specific facts they would seek to develop if granted a continuance). Consequently, plaintiff Bao’s request for a continuance to conduct discovery is DENIED.

IV. CONCLUSION

Based on the foregoing, specially appearing defendant GW’s motion to quash service of summons for lack of personal jurisdiction is GRANTED. The Court will prepare the formal order.

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Calendar Line # 10
Case Name Rosette Simon et al vs EAH Housing Inc. et al
Case No. 26CV484388
Demurrer Before the court is defendant EAH Housing, Inc.’s demurrer to plaintiffs’ first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> In their first amended complaint (“FAC”), self-represented plaintiffs Rosette Simon and Shaquille Ceesay (collectively, “Plaintiffs”) set forth a narrative interspersed with a number of purported common law and statutory violations relating to what the court presumes to be their tenancy at a residential property leased to them by defendant EAH Housing, Inc. (“EAH”). Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (<i>Stein v. Hassen</i> (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (<i>Lombardi v. Citizens Nat’l Trust & Sav. Bank</i> (1955) 137 Cal.App.2d 206, 208-209). Among other things, Plaintiffs allege defendant EAH “breached the implied warranty of habitability,” “failed to fix broken elevator,” “made multiple false statements of plaintiffs,” “took away parking space,” “never sent paperwork regarding security deposit,” “allowed water damage from above units,” “charged illegal amount of court fees,” “harassed Plaintiff,” “discriminated against both Plaintiffs,” “took pictures of tenants personal property w/o consent,” “had violation of building codes,” “defamed the character of Plaintiffs,” and “attempted multiple unlawful entries.” (FAC, pp. 4 – 5). On January 16, 2026, Plaintiffs filed a complaint against defendant EAH. On May 8, 2026, Plaintiffs filed the now operative FAC against defendant EAH. On June 30, 2026, defendant EAH filed a Declaration of Demurring or Moving Party in Support of Automatic Extension (“Extension Declaration”). On July 6, 2026, Plaintiffs filed an objection to defendant EAH’s Extension Declaration. On July 8, 2026, defendant EAH filed the motion now before the court, a demurrer to Plaintiffs’ FAC with an original hearing date of August 6, 2026. There being no timely filed opposition, the court issued a tentative ruling on August 5, 2026 sustaining defendant EAH’s demurrer with leave to amend. On August 6, 2026, Plaintiffs appeared at the hearing but defendant EAH did not appear as there had been no notice of any challenge to the tentative ruling. The court continued hearing on defendant EAH’s demurrer to September 14, 2026. On August 10, 2026, Plaintiffs filed opposition (captioned “Objection”) to defendant EAH’s demurrer.

On September 4, 2026, defendant EAH filed a reply brief in support of its demurrer.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. MEET AND CONFER

As a preliminary matter, Plaintiffs contend defendant EAH failed to comply with Code of Civil Procedure section 430.41. That section provides that the demurring party must meet and confer with the party who filed the challenged pleading “for the purpose of determining whether an agreement could be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., §430.41, subd. (a)). During this process, the demurring party must identify all causes of action it believes are subject to demurrer, identify the bases for the demurrer, and provide legal support. (Code Civ. Proc., §430.41, subd. (a)(1)). In turn, the opposing party shall provide legal support for its position that the pleading is legally sufficient or any identified defects may be cured. (Code Civ. Proc., §430.41, subd. (a)(1)). The demurring party shall file and serve with its demurrer a declaration stating that: (1) the means by which the demurring party met and conferred and that the parties did not reach agreement; or (2) that the party who filed the pleading failed to respond or otherwise failed to meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3)).

In its opposition, Plaintiffs contend defendant EAH did not adequately meet and confer prior to the filing of this demurrer. In a supporting declaration accompanying its demurrer, defendant EAH’s counsel declares she did meet and confer via e-mail with Plaintiffs, attaching a copy of the various exchanges dated between June 29, 2026 and June 30, 2026. (See ¶¶3 – 6 and Exhibits B – D to the Declaration of Rena G. Sera in Support of Defendant EAH, Inc.’s Demurrer to Plaintiffs’ Complaint).

The court finds defendant EAH complied with Code of Civil Procedure section 430.41. In any case, a court may not sustain or overrule a demurrer based on the insufficiency of the meet and confer process. (Code Civ. Proc., §430.41, subd. (a)(4)).

B. MERITS

Defendant EAH demurs to Plaintiffs’ FAC on the ground that the pleading is uncertain. (Code Civ. Proc., §430.10, subd. (f)). “As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible.” (*Id.*) Defendant EAH demurs additionally on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., §430.10, subd. (e)). Defendant EAH contends the Plaintiffs’ FAC is uncertain and fails to state sufficient facts because Plaintiffs allude to various common law and statutory violations without alleging any factual support for any of the elements thereof.

In addition, Plaintiffs do not number their causes of action. Cal. Rules of Court, rule 2.112 states, “Each separately stated cause of action, count, or defense must specifically state:

- (1) Its number (e.g., ‘first cause of action’);
- (2) Its nature (e.g., ‘for fraud’);

- (3) The party asserting it if more than one party is represented on the pleading (e.g., ‘by plaintiff Jones’); and
- (4) The party or parties to whom it is directed (e.g., ‘against defendant Smith’).”

Plaintiffs’ opposition focuses primarily on the inadequacy of defendant EAH’s meet and confer efforts and other perceived improprieties. However, Plaintiffs do not address the substantive deficiencies raised by defendant EAH’s demurrer.

IV. CONCLUSION

Based on the foregoing, Defendant EAH’s demurrer to Plaintiffs’ FAC on the ground that the pleading is uncertain (Code Civ. Proc., §430.10, subd. (f)) and on the ground that the pleading does not state facts sufficient to constitute a cause of action (Code Civ. Proc., §430.10, subd. (e)) is SUSTAINED with 10 days’ leave to amend. All other request(s) for affirmative relief are DENIED. The Court will prepare the formal order.